

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFAIR USA LLC

VS.

**STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.**

**RESPONDENTS' MOTION FOR CONFIDENTIAL TREATMENT
OF PETITION EXHIBITS**

Pursuant to 46 CFR § 502.5, Respondents Sterling Container Line Limited (“Sterling”) and Atlantic Forwarding Ltd. (“Atlantic,” and together with Sterling, the “Respondents”) move for confidential treatment of certain privileged information contained in the Exhibits submitted as part of its Petition for Attorney Fees. In support of this Motion, Respondents state as follows:

1. On June 14, 2024, Respondents submitted to the Presiding Officer in the above captioned proceeding their Petition for Attorney Fees (the “Petition”), accompanied by the Declaration of Ashley K. Kelley (the “Declaration”) in support of the Petition.
2. In support of the Petition and Declaration, and to evidence the amount and reasonableness of the fees requested and billable hours identified, Respondents seek to submit as exhibits a summary of invoices issued by counsel for Respondents at the law firm of Womble Bond Dickinson (US) LLP (“WBD”) throughout the duration of this proceeding.
3. Counsel for Respondents considers the billing narratives associated with the time entries in the Respondents’ invoices subject to attorney-client privilege and/or work product

doctrine (including attorney mental impressions, conclusions, opinions, or legal theories), and submit this Motion seeking a protective order such that the billing narratives are not public record. Respondents do not seek confidential treatment of either (i) the identity of the billing attorneys and dates of the respective entries, (ii) the client identity, or (iii) the hours and hourly rates identified. Respondents only narrowly seek confidential treatment of the privileged descriptive billing narratives accompanying that information.

4. The requested confidential treatment for the billing narratives in the associated invoices and time entry summaries is consistent with federal case law. *See, e.g., Ehrich v. Binghamton City Sch. Dist.*, Civ. No. 3:02–CV–62(TJM/GLS), 210 F.R.D. 17, 22 (N.D.N.Y. 2002) (“As they specifically relate to billing records, federal common law decisions outside of this Circuit reflect a standard that mirrors the New York rule. The First and Ninth Circuits have stated that fee statements are privileged when they disclose the nature of the services provided, reveal attorneys’ advice or reveal details about the defendants’ investigation of their claims. (Collecting cases; citations omitted). The court concludes that attorney billing statements are subject to the attorney-client privilege to the extent that they reveal more than client identity and fee information.”).

5. Public Exhibit A contains an Excel chart summarizing the time entries for which Respondents seek recovery in the Petition, but has redacted attorney-client and work doctrine privileged timekeeper narratives. Proposed Confidential-Restricted Exhibit A contains the same Excel chart with the associated narrative billing time entries disclosing the nature of the WBD services provided and details about the attorney client relationship and associated strategy in defending the claims in this proceeding.

6. Public Exhibit B contains copies of the invoice documentation sent to Respondents

by WBD since the initiation of this proceeding, but has redacted attorney-client and work doctrine privileged timekeeper narratives. Proposed Confidential-Restricted Exhibit B contains complete copies of the invoice documentation sent to Respondents by WBD since the initiation of this proceeding.

Pursuant to 46 CFR § 502.5, for the reasons asserted herein, Respondents respectfully request that the Presiding Officer grant this Motion and afford the privileged Confidential-Restricted Exhibit A and Confidential-Restricted Exhibit B filings with confidential treatment.

Respectfully Submitted,

/s/ Ashley K. Kelley
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District of South Carolina #10369)
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*Counsel for Atlantic Forwarding Ltd. and Sterling
Container Line Limited*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 14th day of June, 2024, the foregoing Respondents' Motion for Confidential Treatment was served via electronic mail on:

Federal Maritime Commission
The Honorable Alex M. Chintella
Administrative Law Judge
judges@fmc.gov

Complainant
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/s/ Ashley K. Kelley
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